

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X

KALIMAH COTTON,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE
OFFICER MICHAEL PETRINO, Shield No. 4818,
NYPD POLICE OFFICER DOMINIC DARRIGO,
Shield No. 6831, and NYPD POLICE OFFICERS
JOHN AND JANE DOES NUMBERS 1-10,

Plaintiff designates NEW
YORK County as the place of
trial.

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 19, 2023

Yours, etc.



Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MICHAEL PETRINO, Shield No. 4818, Richmond Avenue,
Staten Island, NY 10314

NYPD POLICE OFFICER DOMINIC DARRIGO, Shield No. 6831, Richmond Avenue,
Staten Island, NY 10314

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X
KALIMAH COTTON,

Plaintiff,

INDEX NO.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD POLICE
OFFICER MICHAEL PETRINO, Shield No. 4818,
NYPD POLICE OFFICER DOMINIC DARRIGO,
Shield No. 6831, AND NYPD POLICE OFFICERS
JOHN AND JANE DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff KALIMAH COTTON, by their attorneys, Shulman-Hill, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 22, 2022, at approximately 7:30 p.m., Plaintiff KALIMAH COTTON, while lawfully in the vicinity of Grandview Avenue and Forest Avenue, County of Richmond, State of New York, was subject to an unlawful arrest, search, detention, and excessive use of force by defendant Police Officers. In addition, Plaintiff was subjected to an illegal invasive search on a public roadway by defendant officers. Plaintiff was deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and her constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff KALIMAH COTTON is a resident of the state of New York.

3. New York City Police Officer Michael Petrino, Shield No. 4818, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. At all times relevant herein, New York City Police Officer Michael Petrino, Shield No. 4818, was assigned to the 121st Precinct.

5. New York City Police Officer Michael Petrino, Shield No. 4818, is being sued in their individual and official capacities.

6. New York City Police Officer Dominic Darrigo, Shield No. 6831, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. At all times relevant herein, New York City Police Officer Dominic Darrigo, Shield No. 6831, was assigned to the 121st Precinct.

8. New York City Police Officer Dominic Darrigo, Shield No. 6831, is being sued in their individual and official capacities.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 8, 2023.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

16. Their action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On April 22, 2022, at approximately 7:30 p.m., Plaintiff was lawfully present in front of the vicinity of Grandview Avenue and Forest Avenue, County of Richmond, State of New York, when the defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.

19. At the aforementioned place and time, the Plaintiff was walking with her boyfriend to her mother's house after having dinner locally.

20. Plaintiff was also walking her mother's dog, a six month old Husky, and her dog, a Yorkshire terrier/Maltese mix..

21. Plaintiff's mother's dog began to eat garbage from the ground, and Plaintiff pulled the dog away, afraid that it was eating something that would make it sick, mindful of its safety and wellbeing.

22. Shortly after, approximately three (3) defendant officers in an unmarked vehicle in plainclothes suddenly stopped next to Plaintiff and her boyfriend, got out of their vehicle, and began questioning the two of them.

23. Defendant officers approached Plaintiff and her boyfriend on the street and, absent probable cause or reasonable suspicion that Plaintiff was involved in any criminal activity, grabbed Plaintiff and began twisting her arms behind her back.

24. Plaintiff asked defendant officers numerous times why she was being detained and arrested and they refused to answer her questions.

25. Defendant Officer Darrigo, in response to her questions, said, "I think she wants to be in handcuffs."

26. Defendant officers then subjected Plaintiff to an invasive and unlawful pat down search on the public street. Plaintiff told defendant officers that she did not have any underwear on under her sweatpants, and asked numerous times for them to stop searching her, but the male defendant officers proceeded to unlawfully put their hands in her pockets, and search the waist area of her pants, all while twisting her hands behind her back.

27. After the unlawful invasive search of Plaintiff, defendant officers, absent legal justification, pinned Plaintiff's arms behind her back, and put metal handcuffs on her wrists.

28. At no point did Plaintiff resist the unlawful arrest.

29. Defendant officers found no contraband or anything illegal on Plaintiff during their search.

30. Lacking probable cause or an articulable, credible reason to believe that Plaintiff was engaged in unlawful conduct, defendant officers transported Plaintiff to the 121st Precinct in handcuffs, where they searched, photographed, and interrogated Plaintiff.

31. After approximately two (2) hours unlawfully in police custody, Plaintiff was released on her own recognizance with a Desk Appearance Ticket.

32. Plaintiff made several in person court appearances following their release.

33. Despite the fact that the Husky displayed no distress or apparent physical injuries whatsoever, defendant officers took Plaintiff's mother's dog and refused to tell Plaintiff or her boyfriend, who was not arrested, where the dog was being taken.

34. Plaintiff's mother went to the 121st Precinct to try to retrieve her dog and defendant officers refused to give her any information about the dog or where it had been taken.

35. Plaintiff's mother went to several shelters looking for her dog and was finally forced to have her primary care physician inquire with the Staten Island District Attorney in order to get the dog released.

36. Plaintiff's mother was unable to retrieve her dog, who was evaluated by the ASPCA and had no physical injuries or other signs of abuse or malnourishment, for nine (9) days after Plaintiff's unlawful arrest.

37. Plaintiff made four (4) in person court appearances.

38. On or about September 7, 2022, all charges against Plaintiff were dismissed and sealed.

39. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to

prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

40. The unlawful arrest, confinement, invasive search and detention by the individually named defendants caused the Plaintiff to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

41. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

42. Defendants owed a duty of care to Plaintiff.

43. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, seizing and handcuffing him.

44. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

45. All of the foregoing occurred without any fault or provocation by Plaintiff.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Search

49. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

50. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

51. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

52. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

55. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

56. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

58. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York and the United States Constitution.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION **Negligent Infliction of Emotional Distress**

64. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

65. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

66. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

67. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION **Negligent Hiring, Retention, Training and Supervision**

71. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

72. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

73. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

74. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

75. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

76. Defendants failed to intervene to prevent the unlawful conduct described herein.

77. As a result of the foregoing, Plaintiff suffered serious, debilitating and permanent injury, their liberty was restricted for an extended period of time, he was put in fear for their safety, and he was humiliated and subject to other physical constraints.

78. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

82. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

83. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded their false evidence to prosecutors in the NEW YORK County District Attorney's Office.

84. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the NEW YORK County District Attorney's Office.

85. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the NEW YORK County District Attorney's Office.

86. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

87. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

NINTH CAUSE OF ACTION
Malicious Prosecution

91. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

92. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

93. Defendants commenced and continued a criminal proceeding against Plaintiff.

94. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

95. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

96. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

97. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

98. The acts of Defendant Officers caused Plaintiff to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

99. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing their detention for approximately three (3) days in total.

100. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

101. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

102. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

103. Defendant Officers had a duty to protect Plaintiff from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

104. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

105. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of their rights.

106. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

126. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of Defendant Officers caused Plaintiff to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing their detention for approximately three (3) days in total.

132. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

133. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

135. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

136. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

137. Defendant Officers had a duty to protect Plaintiff from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff’s AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of their rights.

140. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

107. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

108. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;

- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

109. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

110. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

111. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

FOURTEENTH CAUSE OF ACTION

Assault

112. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

113. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

114. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

115. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

116. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

117. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FOURTEENTH CAUSE OF ACTION**Battery**

118. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

119. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered Plaintiff when they, in a hostile and/or offensive manner, roughly grabbed Ms. Cotton, conducted an invasive search of her person on a public roadway, brutally effecting an arrest of Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

120. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

121. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

122. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

123. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

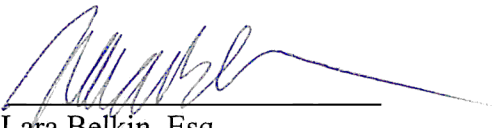
JURY DEMAND

124. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff KALIMAH COTTON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of their action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of their action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
April 19, 2023

By: 

Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

New York City Police Officer Michael Petrino, Shield No. 4818, NYPD
47th Precinct; 4111 Laconia Avenue, NEW YORK, NY 10466

NYPD POLICE OFFICER DOMINIC DARRIGO, Shield No. 6831, Richmond Avenue,
Staten Island, NY 1031

ATTORNEY'S VERIFICATION

LARA BELKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason their verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 19, 2023



LARA BELKIN, ESQ.